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SOFTWARE SERVICES AGREEMENT

THIS SOFTWARE SERVICES AGREEMENT (the "Agreement") is effective as of dated 17/09/2025 .

CLIENT

Boundless S.à r.l.

A Luxembourg private limited liability company

24/28 Rue Goethe, Luxembourg L-1637, Luxembourg

Company Number: B287864

(the "Client")

SERVICE PROVIDER

Zyphe Inc.

A Delaware Corporation

2140 S Dupont Hwy, Camden, DE 19934, USA

EIN:30-1429566

(the "Service Provider" or "Zyphe")

Background

Zyphe is a company incorporated under the laws of the State of Delaware that operates in the field of Identity verification. The Client intends to adopt Zyphe's Identity Verification and Distributed Storage Solution (the "Services"). The Parties have decided to formalize this Software Services Agreement for the provision of the Services.

1. Definitions

For the purpose of this Agreement, the following terms shall be defined as follows:

- **"Agreement"** means this entire Software Service Agreement.
- **"Confidential Information"** means any non-public information disclosed by either Party, whether explicitly marked as confidential or understood to be confidential based on the nature of the information and the circumstances of disclosure.
- **"IPR"** means all intellectual property rights, including copyrights, trademarks, trade secrets, patents, and other proprietary rights.

Docusign Envelope ID: A02D2C82-7B6C-4ECE-BEDB-C00605F5AD86

- **"Solution"** means the complete package of services provided by Zyphe, including the software and accompanying documentation.
- **"Checks/Scan"** means a KYC or AML verification request made by the Client using the Solution.
- **"Stored Credential (Personal Pods)"** means a user's verified credentials stored within their personal storage space.
- **"Party"** means either Zyphe or the Client individually, and **"Parties"** means both collectively.
- **"Process"** (in context of verifications) means the initiation and execution of a Know-Your-Customer (KYC) verification via the Zyphe platform, including submission of required user data/documents and the corresponding automated verification workflow.
- **"Base Rate"** means the prevailing base interest rate as published by the U.S. Federal Reserve (or an equivalent benchmark rate applicable to commercial loans).
- **"Documentation"** means the user manuals, technical specifications, and instructions made available by Zyphe for use of the Solution (e.g., via Zyphe's documentation portal).
- **"Billing Cycle"** means the interval between successive invoices. For purposes of this Agreement, the Billing Cycle is one (1) month.
- **"Software"** means the proprietary software programs, application interfaces (APIs), algorithms, and related code and materials developed and owned by Zyphe (including all updates, upgrades, and enhancements) that enable the provision of the Services.
- **"Directly"** (with capital "D") means without any intervening or contributory cause beyond the reasonable control of the Service Provider. If used in reference to claims (e.g., "arising Directly from"), it signifies that the issue is the immediate and proximate result of the Service Provider's gross negligence, willful misconduct, or adjudicated infringement, as opposed to factors outside its control.
- **"Data Controller"** means the natural or legal person or entity which, alone or jointly with others, determines the purposes and means of the processing of personal data, and which bears primary responsibility for ensuring that such processing complies with applicable data protection laws (for example, as defined under the EU GDPR).

2. Services

Zyphe shall provide the following Services to the Client under this Agreement:

- **User Identity Verification Service**, including document scanning with OCR data extraction, data integrity verification, liveness checks, and AML compliance checks.
- **Distributed Storage and Access Management Services** to store and manage verified user information.
- **Documentation**: Zyphe will provide access to relevant Documentation (user manuals, API documentation, integration guides, and installation instructions) and reasonable support to assist the Client in integrating and using the Solution.

3. Fees & Payment

Docusign Envelope ID: A02D2C82-7B6C-4ECE-BEDB-C00605F5AD86

3.1 Subscription and Usage Fees

The Client shall pay the Service Provider according to the following fee structure:

Plan	**Type of plan**	USD
Starting Plan	**Monthly Premium**	295

- The Monthly Premium is a subscription fee that entitles the Client to a monthly credit allowance up to an equivalent value of 295 USD for usage of the Services. Any unused credits in a given month will roll over within the initial 12-month term of this Agreement (credits are cumulative for one contract year).

- If the Client's usage in any month exceeds the value covered by the Monthly Premium credits, the excess usage will be charged additionally as overage per the rates defined in Section 3.2 below.

3.2 Fee Structure

The following rates apply for service usage, and will be deducted from the Client's credits (or charged as overages if credits are exhausted):

Starting Plan Credit Cost		
Usage Metric(s)	**Unit**	**Unit & Overage Price**
KYC (Liveness check + Document validation)	per check/scan	1.85 USD
AML	per check/scan	0.4 USD
Decentralized Storage	per user (personal pods)	0.60 USD

A validation process is consumed when the Process is completed and processed without any API call (ie: error 400 when there is no document or document it is not readable). For invoicing purposes, the process is completed when document, face biometrics, and Liveness detection check API is processed without error (understanding that all customer journeys will always include the three steps).

The storage of Personally Identifiable Information (PII) for the Client's required retention period is covered by the Decentralized Storage fee.

Docusign Envelope ID: A02D2C82-7B6C-4ECE-BEDB-C00605F5AD86

3.3 Platform Processing Fee

Support, Platform & Processing Fee	
Total due is a percentage based on usage, following this over/under structure.	5%

Additionally, there is a platform fee, which is calculated as a percentage of all usage inside the credit system. The entry processing fee is 5%.

Example:
Total credits: **$295**
Actual usage: **$185**
Platform fee (5% of usage): **$185 × 5% = $9.25**

The Fees are deducted from credits.

Total deducted from credits: **$185 (usage) + $9.25 (fee) = $194.25**
Remaining credits: **$295 – $194.25 = $100.75.**
If the credits are not enough, the amount will be included in the next invoice.

3.4 Integration & License Fees

Integration Fee & License	
Integration Fee	~~$ 5'000~~
License Fee	~~$ 15'000~~

Signing Incentive: The Integration Fee and License Fee described above will be **waived** if the Client signs this Agreement within 10 days of receiving it. If the Agreement is executed within that period, the Client will not be charged the Integration Fee or the upfront License Fee.

However, if the Client terminates the Agreement before the completion of the initial 12-month term (other than for Service Provider's breach, as allowed herein), the following will apply: (i) a termination fee of **$5'000** (which corresponds to the waived Integration Fee) shall become immediately due and payable; and (ii) the Client shall pay a pro-rated portion of the annual License Fee for the number of months during which the Software was utilized under this Agreement (if the License Fee had been initially waived, the pro-rated amount for the used months becomes due).

Docusign Envelope ID: A02D2C82-7B6C-4ECE-BEDB-C00605F5AD86

Example: If the Agreement is signed within 10 days and thus the fees are waived initially, but the Client elects to terminate after 8 months, the Client would owe $5’000 as a termination fee, plus a pro-rata License Fee for the 8 months of usage.

Zyphe reserves the right to reasonably adjust its pricing (including the Monthly Premium, per-check rates, and fees) on an annual basis. In the event of any price increase, the Client will be provided at least 30 days' advance notice. If the Client does not agree to the revised pricing, the Client may elect not to renew the Agreement at the end of the then-current term (without early termination penalty) by providing written notice of non-renewal prior to the renewal date.

3.5 Invoicing and Payment Terms

a) **Invoicing Schedule:** Service Provider will invoice the Client for the Monthly Premium fee upon the commencement of the contract (Effective Date) and thereafter on a monthly basis. Usage overage fees (if any) from the prior Billing Cycle will be detailed and included on the next monthly invoice. Any one-time fees (if applicable) will be invoiced as described in this Agreement or upon their occurrence.

b) **Payment Due Date:** The Client shall pay all invoices within **Net 15** days from the date of receipt of the invoice. All payments will be made in U.S. Dollars (USD) unless otherwise agreed in writing.

c) **Late Payments:** If the Client fails to make any payment by the due date, Zyphe is entitled to charge interest on the overdue amount at a rate of 5% per annum above the Base Rate, calculated on a daily basis from the payment due date until the date payment is received in full. The accrual of such interest is without prejudice to any other rights or remedies Zyphe may have under this Agreement or at law for late payment or non-payment.

d) **Taxes:** All fees are exclusive of any sales, use, value-added, withholding, or similar taxes or charges. The Client is responsible for any such taxes applicable to its payments, other than taxes on Zyphe’s income. Invoices may be subject to U.S. or Delaware state sales tax or VAT (as applicable) based on the Client’s location and the tax laws in effect. Any such taxes (if applicable) will be added to each invoice as a separate line item.

e) **Additional Development Hours (Optional):** If the Client requests additional custom development or engineering support outside the scope of the standard Services, and Zyphe agrees to provide such services, those services will be billed at a flat rate of $150.00 USD per hour (or at such other rate as the Parties may mutually agree in writing). Any such additional services and fees shall, if needed, be documented in a written addendum or work order signed by both Parties.

The Client is permitted to purchase more development hours, based on the below fee structure:

Docusign Envelope ID: A02D2C82-7B6C-4ECE-BEDB-C00605F5AD86

Ad-Hoc Development (Flat Fee /per hour)			
1	Hour	$150.00	Per Hour

4. Term and Termination

a) **Term:** This Agreement shall commence on the Effective Date and continue for an initial term of twelve (12) months ("Initial Term"), unless earlier terminated as provided herein. Following the Initial Term, the Agreement will automatically renew on an annual basis for successive 12-month renewal terms, unless either Party gives written notice of non-renewal at least ninety (90) days before the end of the then-current term.

b) **Early Termination by Client:** The Client may terminate this Agreement for convenience (without cause) before the end of the Initial Term or any renewal term by providing at least thirty (30) days' prior written notice to the Service Provider. However, in the event of any early termination for convenience (i.e., not due to breach by Service Provider), the Client shall be responsible for payment of all fees that would have been payable for the remainder of the committed term. This includes, without limitation, any Monthly Premium fees for the remaining months of the term (which shall become immediately due), as well as any applicable early termination fees or pro-rated license fees as specified in Section 3.4 if the termination occurs in the Initial Term. The foregoing early termination payments are agreed as liquidated damages and not as a penalty, reflecting the Parties' reasonable estimate of Zyphe's potential loss from an early termination.

c) **Termination for Breach:** Either Party may terminate this Agreement **immediately upon written notice** to the other Party if the other Party materially breaches any term of this Agreement and (if such breach is curable) fails to cure that breach within thirty (30) days after receiving written notice describing the breach. In the event of termination by the Client for the Service Provider's uncured material breach, the Client shall be relieved of any obligation to pay fees for the remaining unused portion of the term (and any prepaid fees for services not rendered as of termination shall be refunded). In the event of termination by the Service Provider for the Client's breach, such termination shall be treated as an early termination by the Client and subject to the obligations in subsection (b) above (including payment of any remaining term fees and applicable termination fees).

d) **Insolvency or Legal Incapacity:** Either Party may terminate this Agreement by written notice if the other Party (i) becomes insolvent, admits in writing its inability to pay debts as they mature, or seeks protection under any bankruptcy or receivership law (or has such an action commenced against it that is not dismissed within 60 days), or (ii) is dissolved or liquidated or otherwise ceases business operations.

e) **Effect of Termination:** Upon expiration or termination of this Agreement for any reason, the Client shall immediately cease using the Solution and any Software

Docusign Envelope ID: A02D2C82-7B6C-4ECE-BEDB-C00605F5AD86

provided under this Agreement (except as needed to retrieve Client data, if permitted). Within thirty (30) days after termination, each Party shall return or destroy (at the disclosing Party's direction) all Confidential Information of the other Party in its possession, except to the extent retention is required by law. Termination shall not relieve the Client of its obligation to pay any fees accrued or payable to Service Provider prior to the effective date of termination. **No refunds** of fees already paid will be due unless termination was due to Service Provider's breach or as expressly provided otherwise in this Agreement.

f) **Survival:** Any provisions of this Agreement which by their nature should survive termination or expiration (including, but not limited to, confidentiality, data protection, intellectual property ownership, indemnities, limitation of liability, and payment obligations for services already rendered) shall survive the termination or expiration of this Agreement.

5. Service Delivery and Support

a) The API and other on-premises components that comprise the Software, as well as the Documentation, will be delivered by Zyphe through an online link that enables the CLIENT to use the Software. On the other hand, the APIs included in the Offer will be delivered by Zyphe by providing the necessary access credentials, unless otherwise indicated in this contract. Zyphe shall deliver these Software components within the periods established in this contract, and shall be addressed to the email address(es) provided by the Client.

i. In the case that the access credentials of the APIs need to be updated, Zyphe will provide to the Client the new access credentials at least fifteen (15) days before the expiration of the current ones.

b) Zyphe will provide access to:

i. The dashboard where the Client is able to perform all the activities related to the Services.
ii. Ongoing Sandbox
iii. API(s) - subject to the standard rate limit of 50 requests per minute.
iv. Documentation

Support & Service Level 5 (upgrade anytime). See options here: SLA & SUPPORT TIERS

6. Performance Guarantee

a) The Client acknowledges that, due to the current state of the art in identity verification technology, the Solution may have an inherent error rate and it is therefore not possible to guarantee a 100% error-free performance or total reliability of results. The Service Provider shall, upon the Client's request, provide information regarding the typical performance levels and error rates of the Solution (or particular version/components of it) to help the Client understand its capabilities. The Client further understands that the outputs generated by the Solution (such as identity verification results or risk scores) are probabilistic in nature rather

Docusign Envelope ID: A02D2C82-7B6C-4ECE-BEDB-C00605F5AD86

than definitive binary determinations, and that the Client is responsible for configuring or interpreting such results in a manner appropriate to its needs and regulatory requirements.

b) The Client acknowledges and agrees that it remains responsible for conducting its own internal controls and due diligence to comply with all applicable laws and regulations relevant to its business. This includes, but is not limited to, laws and regulations on the prevention of money laundering and terrorist financing, public safety, border control, age verification (protection of minors), and any other compliance obligations applicable to the Client's industry (collectively, "Compliance Obligations"). The Client is responsible for assessing the suitability of using the Solution as a tool to fulfill such Compliance Obligations and for implementing any additional measures necessary to ensure full compliance with applicable law. Zyphe's Solution is intended to aid the Client's compliance efforts, but it is not a substitute for the Client's own legal and regulatory compliance programs.

7. Terms of Use & Exclusivity

- **Permitted Use:** This Agreement entitles the Client to use the Solution solely for the purpose of verifying the identity and related credentials of users of the Client's own platform or services. The Solution and Services are provided for the Client's internal business use only. This Agreement does not grant the Client any right to distribute, resell, or sublicense the Solution to any third party.

- **Exclusivity:** During the term of this Agreement, the Client shall **not** directly or indirectly engage any other service provider, contractor, or third-party to provide identity verification or KYC services that are similar to the Services provided by Zyphe under this Agreement. The Client acknowledges that Zyphe is relying on this exclusivity provision as a material inducement to enter into this Agreement. If the Client breaches this exclusivity obligation, such breach shall be deemed a material breach of this Agreement and will entitle the Service Provider to immediately terminate the Agreement for cause. In addition, Zyphe shall be entitled to seek appropriate legal remedies, including injunctive relief and damages, for any harm suffered due to the Client's breach of exclusivity.

- **Compliance with Laws:** The Client agrees to use the Solution in compliance with all applicable laws and regulations. Nothing in this Agreement shall be construed to relieve the Client of its obligations under applicable law when using the Solution. The Client must ensure that its use of the Solution (and the results obtained) is undertaken without violating any laws or rights of any individual.

- **Authorized Users:** The Client may permit its employees and authorized agents or contractors to use the Solution on the Client's behalf for the purposes described in this Agreement, provided that the Client is responsible for ensuring that any such personnel are made aware of and comply with the terms of this Agreement. Any action or omission by any person the Client allows to use the Solution will be considered the Client's action or omission for purposes of this Agreement.

Docusign Envelope ID: A02D2C82-7B6C-4ECE-BEDB-C00605F5AD86

- **No Copying or Modification:** The Client shall not copy, reproduce, or create derivative works from the Solution (or any part of it), nor modify, alter, or tamper with the Solution. The Client shall also not remove or obscure any proprietary notices or legends on the Solution.

- **Security Measures:** The Client shall implement appropriate and reasonable security measures to protect the Solution (including any software, credentials, or documentation provided by Zyphe) from unauthorized access, use, or misuse. This includes safeguarding API keys, passwords, and any other access credentials.

- **No Reverse Engineering:** Under no circumstances shall the Client engage in reverse engineering, decompilation, disassembly, or any other attempt to derive the source code or underlying ideas or algorithms of the Solution, except to the extent expressly permitted by applicable law notwithstanding this prohibition.

8. Liability

a) **Acknowledgment of Limitations:** Within the limits permitted by law, the Client acknowledges the technological and inherent limitations of the Solution as described in Section 6 (Performance Guarantee). The Client accepts that certain residual risks or errors may exist and agrees that it will consider these factors in its use of the Solution. The Client assumes responsibility for using the Solution in accordance with Section 6 and for any consequences of use outside the Solution's intended purpose or specifications.

b) **General Exoneration of Liability:** The Client hereby **exonerates and releases Zyphe (the Service Provider)**, including its directors, officers, employees, and agents (each an "Exonerated Party"), from any and all liability for any claim, loss, or damage arising out of or related to the provision, performance, or use of the Solution, **except to the extent that such claim, loss, or damage is the direct result of the willful misconduct or gross negligence of the Exonerated Party**. In other words, Zyphe will not be responsible for issues that are not directly caused by its gross negligence or intentional misconduct.

c) **Specific Exclusions:** Without prejudice to the generality of the above subsection (b), Zyphe further **excludes** the following matters from its scope of liability and responsibility under this Agreement:

i. Any willful, fraudulent, or deliberately unlawful acts or omissions (including criminal acts) committed by the Client (or its affiliated companies or employees), or any claims or damages arising out of such acts.
ii. Any fact, circumstance or condition that the Client knew, or reasonably should have known, could adversely affect the correct functioning of the Solution for the Client's purposes, **provided that** such fact or circumstance is not due to an act or omission of Zyphe. (In other words, Zyphe is not liable for problems caused by pre-existing conditions or information that the Client was aware of and that are outside of Zyphe's control.)
iii. Failures or malfunctions in equipment, power supply, or communication systems not under Zyphe's control – for example: electrical failures (including power interruptions or surges), telecommunication or internet outages, or satellite transmission failures – except to the extent such failure is caused by Zyphe's own serious misconduct or an inherent error in

Docusign Envelope ID: A02D2C82-7B6C-4ECE-BEDB-C00605F5AD86

the Solution provided by Zyphe.
iv. Any claim or liability related to financial transactions, funds transfers, payments, or negotiable instruments involving banks or financial institutions. (For instance, Zyphe is not responsible for any damages or claims arising from the use of the Solution in connection with the Client's banking or payment operations.)
v. Failure to perform or any delay in performance of obligations due to **force majeure** or fortuitous events. (Force majeure includes events outside a Party's reasonable control, such as natural disasters, acts of government, war, civil unrest, strikes, or other unforeseen events that make performance impracticable.)
vi. Any use of the Services by the Client to provide identity verification or related services **to third parties** (i.e., acting as a reseller or service provider to others), whether such third-party use is permitted by this Agreement or not. Zyphe's responsibility is only to the Client for its direct use of the Solution; Zyphe assumes no liability for any third-party use or reliance on the Solution through the Client.
vii. Any consequential or indirect damages that result from circumstances outlined in sub-points (i) through (vi) above.

d) **Limitation of Liability:** Notwithstanding any other provision of this Agreement, and **to the maximum extent permitted by law**, Zyphe's total cumulative liability arising out of or in connection with this Agreement (whether in contract, tort, or otherwise) shall be **limited to the total amount of fees paid by the Client to Zyphe under this Agreement in the twelve (12) months immediately preceding the event giving rise to the claim**. If the duration of the Agreement has been less than twelve months, then such cap on liability shall be the total amount of fees paid by the Client to Zyphe during the shorter period of actual performance. The existence of more than one claim or incident will not enlarge this cap. The Parties acknowledge that the pricing and terms of this Agreement have been set with respect to this allocation of risk.

e) **Exceptions to Liability Cap:** The limitation of liability in subsection (d) **shall not apply** to the following circumstances, and in such cases liability will be determined in accordance with applicable law:

- i. Liability arising from Zyphe's breach of its obligations under data protection laws, confidentiality obligations, or infringement of intellectual property or proprietary rights, or from violations of fiscal, tax, labor, social security, or anti-corruption laws.

- ii. Liability for losses or damages caused by Zyphe's **willful misconduct or gross negligence**.

- iii. Any other liability which cannot be limited or excluded as a matter of law (including certain statutory liabilities that are by law non-excludable or not subject to limitation).

For clarity, nothing in this Agreement is intended to limit or exclude liability in a manner that is prohibited by applicable law; and in any circumstance where law mandates unlimited liability for a certain act or omission, the limitation in (d) will not apply to that extent.

Docusign Envelope ID: A02D2C82-7B6C-4ECE-BEDB-C00605F5AD86

f) **No Indirect Damages: Except** for claims arising from a Party's willful misconduct or gross negligence (which are not subject to this exclusion), **in no event shall either Party be liable to the other for any indirect, consequential, special, punitive, or exemplary damages**, or for any loss of profits, loss of revenue, loss of business opportunity, or interruption of business, arising out of or related to this Agreement, even if advised of the possibility of such damages. This exclusion of indirect damages is independent of any exclusive remedy provided in this Agreement.

g) **Compliance with Laws (Taxes and Social Charges):** Each Party is responsible for complying with all of its own obligations under applicable tax, employment, and social security laws in each jurisdiction where it operates or does business. Each Party shall indemnify and hold the other harmless from any penalties or liabilities arising from its failure to pay required taxes or contributions. Failure by either Party to comply with such obligations shall constitute just cause for the other Party to terminate this Agreement for breach.

9. Licence

All software and technology provided as part of the Solution is licensed, **not sold**, to the Client. The Client is granted a limited, non-exclusive, non-transferable, revocable license during the term of this Agreement to use the Solution solely for the purposes set forth in this Agreement and in accordance with the terms herein.

- **Copies:** Any copies of the Software or other components of the Solution provided or made pursuant to this Agreement are licensed for use only under the terms of this Agreement. The Client acquires no ownership or title in the Software, Solution, or any intellectual property of the Service Provider. Except for the rights expressly granted by this Agreement, no other rights or licenses are granted to the Client (whether by implication, estoppel or otherwise). Zyphe (the Service Provider) reserves all rights, title, and interest in and to the Solution and Software, including all related IPR, that are not expressly granted to the Client hereunder.

- **License Restrictions:** The Client shall not (except as permitted in Section 7 or as otherwise expressly allowed by this Agreement) distribute, sublicense, rent, lease, or use the Solution for the benefit of any third party. The Client shall not remove, alter, or obscure any proprietary notices on the Solution. All use of the Solution shall be in accordance with the license terms and this Agreemen

10. Warranties and Representations

a) a) **Service Provider's Corporate Authority:** The Service Provider represents and warrants that it is a corporation duly incorporated, validly existing, and in good standing under the laws of Delaware. The Service Provider has all requisite corporate power and authority to own its properties and to carry on its business as presently conducted, and to enter into and perform its obligations under this Agreement. The execution, delivery, and performance of this Agreement by the Service Provider have been duly authorized by all necessary corporate or

Docusign Envelope ID: A02D2C82-7B6C-4ECE-BEDB-C00605F5AD86

organizational actions. This Agreement constitutes a legal, valid, and binding obligation of the Service Provider, enforceable against it in accordance with its terms, except as such enforceability may be limited by applicable bankruptcy, insolvency, reorganization, or similar laws affecting creditors' rights generally, and general principles of equity.

b) b) **No Conflicts or Litigation:** The Service Provider represents that, to the best of its knowledge and belief, its entry into and performance of this Agreement: (i) does not and will not violate any provision of its charter, bylaws, or other governing documents; (ii) does not and will not conflict with or result in a breach of any material agreement to which it is a party or by which it is bound; (iii) does not violate any judgment, law, or regulation applicable to the Service Provider; and (iv) will not result in the creation of any material lien, charge or encumbrance on the Service Provider's assets or result in the suspension or revocation of any material licenses or permits applicable to the Service Provider.

c) c) **Service Warranty:** The Service Provider represents and warrants that the Services will be performed in a professional and workmanlike manner, in accordance with generally recognized industry standards. The Service Provider further warrants that the Solution, when used as authorized and instructed, will substantially comply with the specifications and descriptions provided in the Documentation. The Service Provider will comply with all applicable laws and regulations in the performance of its obligations under this Agreement. **Disclaimer:** Except for the express warranties stated in this Agreement, the Solution and Services are provided "as is," and the Service Provider disclaims all other warranties, express or implied, including any implied warranties of merchantability, fitness for a particular purpose, or non-infringement. The Service Provider does not warrant that the Solution will meet all of the Client's requirements or that operation of the Solution will be uninterrupted or error-free.

d) d) **Client's Authority:** The Client represents and warrants that it is a business entity duly organized and validly existing under the laws of its jurisdiction of organization, and that it has full right, power, and authority to enter into and perform its obligations under this Agreement. The individual signing this Agreement on behalf of the Client represents that they have the authority to bind the Client to the terms of this Agreement. The Client also represents that its execution and performance of this Agreement will not conflict with or violate any other agreement or legal obligation binding upon it.

11. Confidentiality

a) **Use and Non-Disclosure:** Each Party (the "receiving Party") agrees that it shall use the Confidential Information of the other Party (the "disclosing Party") solely for the purposes of fulfilling its obligations and exercising its rights under this Agreement. The receiving Party shall not disclose, reproduce, or make available any Confidential Information of the disclosing Party to any third party except as authorized in writing by the disclosing Party. All

Docusign Envelope ID: A02D2C82-7B6C-4ECE-BEDB-C00605F5AD86

Confidential Information shall be held in strict confidence and protected using at least the same degree of care that the receiving Party uses to protect its own confidential and proprietary information, but in no event less than reasonable care.

b) **Exceptions:** The obligations of confidentiality in this Section shall not apply to any information that:
i. **Mandatory Disclosure** – is required to be disclosed by the receiving Party pursuant to applicable law, regulation, court order, or governmental authority (provided that the receiving Party complies with the procedures in subsection (c) below, to the extent permitted);
ii. **Consent** – the receiving Party is expressly authorized in writing by the disclosing Party to disclose, but only to the extent of and subject to any conditions of such written authorization;
iii. **Prior Possession** – was in the receiving Party's lawful possession prior to disclosure by the disclosing Party, as evidenced by the receiving Party's written records, and was not subject to an existing obligation of confidentiality;
iv. **Public Domain** – is or becomes part of the public domain or publicly available through no breach of this Agreement or wrongful act of the receiving Party; or
v. **Third-Party Source** – is received by the receiving Party in good faith from a third party who, to the receiving Party's knowledge, had the right to disclose it without confidentiality obligation.

c) **Legal Disclosure Process:** If the receiving Party becomes aware that it may be required by law, regulation, or legal process to disclose any of the disclosing Party's Confidential Information (for example, pursuant to a subpoena, investigative demand, or court order), the receiving Party shall (to the extent permitted by law) promptly notify the disclosing Party in writing before such disclosure is made. This notice is intended to provide the disclosing Party an opportunity to seek a protective order or other appropriate remedy to prevent or limit the disclosure. The receiving Party will cooperate with any such efforts by the disclosing Party, at the disclosing Party's expense. If, in the absence of a protective order or other remedy, the receiving Party is nonetheless legally compelled to disclose Confidential Information, the receiving Party may disclose only that portion of Confidential Information which it is legally required to disclose, and will use commercially reasonable efforts to ensure that the disclosed information is treated confidentially.

d) **Standard of Care:** Each Party shall treat the other Party's Confidential Information with the same level of care to avoid disclosure or misuse as it would use with respect to its own information of similar sensitivity and importance, and in no event less than a reasonable standard of care.

e) **Need-to-Know Access:** Each Party shall restrict access to the other Party's Confidential Information to those of its employees, officers, agents, consultants, or advisors who have a legitimate need to know such information for the performance or enforcement of this Agreement and who are bound by confidentiality obligations at least as protective as those in this Section. The receiving Party shall be responsible for any breach of this Section by its personnel or representatives.

f) **Injunctive Relief:** The Parties acknowledge that a breach of this Section 11 (Confidentiality) may cause irreparable harm for which monetary damages may be an insufficient remedy. Therefore, in the event of any actual or threatened breach of

Docusign Envelope ID: A02D2C82-7B6C-4ECE-BEDB-C00605F5AD86

confidentiality, the non-breaching Party shall be entitled to seek immediate injunctive relief and any other equitable remedies available to protect its Confidential Information, in addition to any other rights and remedies it may have at law or under this Agreement.

g) **Survival:** The obligations of confidentiality and non-disclosure set forth in this Section will **survive the termination or expiration** of this Agreement for a period of **five (5) years** from the date of such termination/expiration, or for as long as the information remains a trade secret under applicable law, whichever is longer.

12. Data Protection

a) Each Party shall comply with all applicable data protection and privacy laws in the performance of this Agreement. With respect to any personal data (as defined by relevant laws) processed in connection with the Services, the Parties acknowledge that the Client will generally determine the purposes and means of such processing, and thus the Client is acting as the **Data Controller**, and Zyphe is acting as a **data processor** on behalf of the Client. The Service Provider agrees that it will not process or use any personal data obtained in the course of providing the Services for any purpose other than as necessary to perform the Services in accordance with the Client's instructions and this Agreement or as otherwise required by law.

b) The Parties agree to execute a separate Data Processing Agreement ("DPA") or addendum that details the instructions, scope, technical measures, and other specifications for the processing of personal data by the Service Provider on behalf of the Client, as required by applicable data protection laws (e.g., GDPR, CCPA, etc.). The DPA, once executed by both Parties, shall be deemed incorporated into this Agreement by reference. In the event of any conflict between this Agreement and the DPA regarding the processing of personal data, the terms of the DPA shall prevail to the extent of the conflict.

c) Both Parties shall implement and maintain appropriate technical and organizational measures to protect personal data against unauthorized or unlawful processing and against accidental loss, destruction, damage, theft, alteration, or disclosure. In case of any confirmed data breach involving personal data, the affected Party shall promptly notify the other and both Parties will cooperate in good faith to address and mitigate the issue as required by law.

Intellectual Property Rights

All Intellectual Property Rights (IPR) in and to the Solution, the Software, and any materials, technology, or deliverables developed or provided by the Service Provider under this Agreement shall remain **owned by the Service Provider (Zyphe)**. Except for the limited license rights expressly granted to the Client in this Agreement, the Service Provider retains all right, title, and interest in and to its pre-existing and proprietary materials and any Intellectual Property created in connection with the Services.

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- For clarity, any improvements, enhancements, or modifications to the Solution (even if developed in response to the Client's feedback or requests) shall be the exclusive property of the Service Provider unless otherwise agreed in a written amendment. The Client shall have no rights in such intellectual property except as necessary for its use of the Solution under the terms of this Agreement.

- The Client's data and any of the Client's proprietary materials provided to Zyphe remain the property of the Client. Nothing in this Agreement transfers ownership of the Client's data or materials to Zyphe. Zyphe is permitted to use the Client's data solely for purposes of providing the Services and in accordance with Section 12 (Data Protection) and the DPA.

14. Governing Law

a) **Governing Law:** This Agreement and any disputes arising out of or related to this Agreement shall be governed in all respects by the laws of the **State of Delaware**, USA, without regard to its conflict of law principles.

b) **Arbitration:** Any dispute, claim, or controversy arising out of or relating to this Agreement (including any question regarding its existence, validity, breach, or termination) shall be **resolved by binding arbitration**. The arbitration shall be administered by the American Arbitration Association (**AAA**) in accordance with its Commercial Arbitration Rules then in effect. The seat or legal place of arbitration shall be **New York, New York, USA**, and the arbitration shall be conducted in the English language. The arbitration shall be decided by a single arbitrator, **selected by mutual agreement of the Parties**, or if the Parties cannot agree, selected by the AAA in accordance with its rules. The arbitrator shall apply the governing law specified above.

c) **Procedure and Award:** The arbitrator shall have the authority to award any relief that a Delaware court could grant, including injunctions and damages (subject to the limitations set forth in this Agreement). The arbitrator's award shall be **final and binding** on the Parties. Judgment on the arbitration award may be entered in any court having jurisdiction. The Parties agree that the arbitration proceeding and outcome shall be confidential, except to the extent necessary to enforce or challenge the award in court or as required by law.

d) **Interim Relief:** Notwithstanding the foregoing agreement to arbitrate, either Party may at any time seek provisional or interim measures (such as temporary restraining orders or preliminary injunctions) from any court of competent jurisdiction, as necessary to protect its rights or assets pending the outcome of arbitration. Seeking such interim relief in court shall not be deemed a waiver of the obligation to arbitrate the underlying dispute.

e) **Fees and Costs:** In any arbitration arising out of or related to this Agreement, the arbitrator **shall award to the prevailing Party**, if any, the reasonable costs and attorneys' fees incurred by that Party in connection with the arbitration. If the arbitrator determines that a Party prevailed on some but not all of its claims, the arbitrator may award the prevailing Party an appropriate percentage of its costs and attorneys' fees, as the arbitrator deems equitable.

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f) **Court Jurisdiction:** Subject to the arbitration clause above, and for the exclusive purpose of (i) enforcing the arbitration award or (ii) seeking any court orders contemplated by subsection (d) (interim relief), the Parties consent to the exclusive jurisdiction of the state and federal courts located in Delaware and New York, and waive any objections or defenses based on lack of personal jurisdiction or inconvenient forum in those courts.

15. General

a) **Entire Agreement:** This Agreement (including any schedules, exhibits, or addenda incorporated herein, such as a Data Processing Agreement) constitutes the **entire agreement** between the Parties with respect to the subject matter hereof and supersedes all prior or contemporaneous agreements, negotiations, representations, and proposals, whether written or oral, relating to the same subject matter. Each Party acknowledges that it has not relied on any promise, representation, or warranty that is not expressly stated in this Agreement in deciding to enter into this Agreement.

b) **Amendments and Waivers:** No amendment, modification, or waiver of any provision of this Agreement shall be effective unless it is in writing and signed by an authorized representative of both Parties. Any waiver by a Party of a breach of any provision of this Agreement shall not be construed as a waiver of any subsequent breach of the same or any other provision. The failure or delay of either Party to enforce any term of this Agreement shall not be deemed a waiver of that term.

c) **Severability:** If any provision of this Agreement is held by a court or other tribunal of competent jurisdiction to be invalid, illegal, or unenforceable, that provision shall be enforced to the maximum extent permissible so as to effect the intent of the Parties, or, if incapable of such enforcement, shall be deemed severed from this Agreement. The remaining provisions of this Agreement will remain in full force and effect. In such event, the Parties shall negotiate in good faith a valid, legal, and enforceable substitute provision that most nearly reflects the original intent and economic effect of the invalid provision.

d) **Relationship of the Parties:** The relationship of the Parties under this Agreement is that of independent contractors. Nothing in this Agreement is intended to create, nor shall be construed as creating, any partnership, joint venture, agency, franchise, or employment relationship between the Parties. Neither Party has the authority to act on behalf of or bind the other Party in any manner unless expressly provided otherwise in this Agreement.

e) **Assignment:** The Client shall not assign or transfer this Agreement (in whole or in part), nor delegate any of its rights or obligations hereunder, without the prior written consent of the Service Provider. Any attempted assignment by the Client in violation of the foregoing will be null and void. The Service Provider may assign this Agreement, in whole or part, to an affiliate or to a successor in interest (for example, in connection with a merger, acquisition, corporate reorganization, or sale of all or substantially all of its assets) with written notice to the Client. Subject to the foregoing, this Agreement will bind and inure to the benefit of the Parties' respective successors and permitted assigns.

f) **Notices:** All notices or other communications required or permitted under this Agreement shall be in writing and shall be deemed given: (i) when delivered personally to the recipient,

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(ii) one business day after being sent by reputable overnight courier with tracking, or (iii) three business days after being mailed by certified or registered mail, return receipt requested, postage prepaid. Notices shall be sent to the addresses of the Parties set forth above (or to such other address as may be designated in writing by a Party). In addition, a copy of any legal or contractual notice to the Service Provider shall be emailed to legal@zyphe.com (for convenience, not as official notice address).

g) **Further Assurances:** Each Party agrees to execute and deliver such other documents, and to take such actions, as may reasonably be requested to give full effect to the intent of this Agreement and to carry out the provisions herein.

h) **Counterparts & Electronic Signatures:** This Agreement may be executed in **counterparts**, each of which will be deemed an original, and all of which together shall constitute one and the same instrument. Signatures delivered by electronic means (e.g., via PDF or a secure e-signature service) shall be deemed binding and equivalent to original signatures.

Agreed by the Parties:

Service Provider

Zyphe Inc.
Michelangelo Frigo – Founder & CEO

Signature: DocuSigned by: Michelangelo Frigo BE49578F97804D3...
Date: 17/09/2025

Client

Boundless S.à r.l.
Milo Guastamacchia - Manager

Signature: Signed by: Milo Guastamacchia 864A37EE0BFF415...
Date: 17/09/2025